

Sneha Devi v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 3 September 2014 · Writ-C No. 46885 of 2014 · **Writ disposed of; Executive Engineer directed to decide the tenant's Clause 4.4 connection application, after notice to the landlord, preferably within two months.**

HEADNOTE

A tenant whose application for a new connection in rented premises remained undisposed was remitted to the Executive Engineer. Clause 4.4 of the U.P. Electricity Supply Code, 2005 must be exercised after putting the landlord to notice; the grievance is to be decided thereunder preferably within two months of production of a certified copy.

FACTUAL SUMMARY

Sneha Devi occupied rented premises and applied on 10 May 2014 for an electricity connection. An earlier writ (Writ-C No. 28353 of 2014) was dismissed as premature on 21 May 2014: Clause 4.1's one-month period from a completed application had not elapsed, and the form was incomplete. She returned alleging the application remained undisposed. The Power Corporation appeared. The Court permitted impleadment of the concerned Executive Engineer.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

occupant connection; notice to landlord

HOLDING

The Executive Engineer's power under Clause 4.4 of the U.P. Electricity Supply Code, 2005 must be exercised after putting the landlord to notice. A tenant's pending application for connection in tenanted premises is to be decided under that clause, preferably within two months of production of a certified copy of the order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER-TENANT IS ENTITLED ON MERITS TO A NEW CONNECTION IN THE TENANTED PREMISES

Left to the Executive Engineer under Clause 4.4 after notice to the landlord. ¶ 1